



SPONSOR: Rep. Wilson-Anton & Rep. Morrison & Rep. Osienski &
Rep. Romer & Rep. K. Williams & Rep. S. Moore &
Sen. Sturgeon
Reps. Burns, K. Johnson, Bush; Sen. Sokola

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 83

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO SCHOOL BOARD MEETINGS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1048, Title 14 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1048. Regular and special meetings; quorum; roll call vote.

4 (f) (1) A school board member must be allowed to attend a regular or special meeting by electronic means if the
5 school board member is unable to attend a regular or special meeting for any of the following reasons:

6 a. Illness of the school board member.

7 b. Illness of an individual in the school board member's family where that individual requires caretaking.

8 c. A public health emergency.

9 d. Pregnancy or immediate post-partum care responsibilities of the school board member.

10 e. Military deployment of the school board member.

11 (2) A school board member attending remotely under paragraph (f)(1) of this section is counted as though
12 physically present for purposes of quorum and voting.

13 (3) The means used to facilitate electronic attendance under this subsection must allow all participating
14 members and witnesses to simultaneously hear the comments of each member or witness.

15 Section 2. This Act is effective 30 days after its enactment into law.

16 Section 3. Upon enactment of this Act, the Department of Education shall notify the president of each school
17 board and the superintendent of each school district of the requirements of this Act and its effective date.

SYNOPSIS

This Act requires school boards to allow members to attend school board meetings by a remote method under certain limited circumstances relating to health or military deployments. A school board member attending by electronic means under this legislation would count towards quorum and be able to vote as though physically present.